

(35)

Tentative Ruling

Re: ***In re Austin Keohavong***
Superior Court Case No. 26CU02226

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Petition to Approve Compromise of Minor

Tentative Ruling:

To deny without prejudice. Petitioner Phoumano Keohavong must file a new petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of an amended petition. In the event that oral argument is requested, both petitioner Phoumano Keohavong and claimant Austin Keohavong are excused from appearing.

Explanation:

Item 12 reports medical expenses. Item 12(b)(4) reports a Medi-Cal benefit paid in the amount of \$40.91. However, evidence was submitted that Medi-Cal did not pay a benefit out on the incident in question. The only figure that aligns is a payment from Sante Health System, who is not listed as medical expense. Moreover, the petition reports that there are lien claims that total \$7,640, and that \$4,050 would be sufficient to satisfy those lien claims. No evidence was submitted to demonstrate, for example, that The Summit Physical Therapy will accept \$2,200 in lieu of its potential lien for \$4,900.

Item 13 reports costs of \$464.50. This conflicts with the declaration of counsel which reports that counsel is not seeking reimbursement of any costs advanced in this matter. (Attachment 13a, Hergenroether Decl., subpart (1).) The proposed order appears to seek recovery of costs. This requires clarification.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/19/26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Swan v. Stoll***
Superior Court Case No. 23CECG00336

Hearing Date: August 20, 2026 (Dept. 501)

Motion: By Defendants for Summary Judgment, or in the Alternative,
Adjudication

Tentative Ruling:

To deny defendants' motion for summary judgment. To deny defendants' motion for summary adjudication. (Code Civ. Proc., § 437c.)

Explanation:

A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) In determining a motion for summary judgment, the court views the evidence "in the light most favorable to the plaintiff", liberally construing plaintiff's evidence and strictly scrutinizing the defendant's evidence. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.) The court does not weigh evidence or inferences (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856), nevertheless, the court shall consider all inferences reasonably deducible from the evidence unless it is controverted by other inferences or evidence. (Code Civ. Proc., § 437c, subd. (c).) Doubts as to whether there is a triable issue of fact are resolved in favor of the opposing party. (*Ingham v. Luxor Cab Co.*, *supra*, 93 Cal.App.4th 1045, 1049.)

Summary adjudication is the proper mechanism for challenging a particular, "cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty." (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 242.) However, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); see also *Catalano v. Superior Court* (2000) 82 Cal.App.4th 91, 97 [piecemeal adjudication prohibited].)

A summary judgment motion must show that the "material facts" are undisputed. (Code Civ. Proc., § 437c, subd. (b)(1).) The pleadings serve as the "outer measure of materiality" in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74 [pleadings determine the scope of relevant issues on a summary judgment motion].)

Burden

The ultimate burden of persuasion rests on the defendant, as the moving party. The initial burden of production is on the defendant to show by a preponderance of the evidence, that it is more likely than not that a given element cannot be established or that a given defense can be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The defendant must support the motion for summary adjudication with evidence, including, but not limited to, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice may be taken. (Code Civ. Proc., § 437c, subd. (b).) Defendants can meet this burden by producing affirmative evidence negating an essential element of a plaintiff's claim. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 324.) Defendants can also meet this burden by showing that a plaintiff does not have evidence and cannot reasonably obtain said evidence on an essential element of a plaintiff's claim. (*Aguilar, supra*, 25 Cal.4th at 855.)

If the defendant carries this initial burden of production, the burden of production shifts to the plaintiff to show that a triable issue of material fact exists. The plaintiff does this if she can show, by a preponderance of the evidence, that it is more likely than not that a given element can be established or that a given defense cannot be established. (*Aguilar, supra*, 25 Cal.4th at 852.)

Separate Statement

A party moving for summary judgment or summary adjudication must support the motion with a separate statement that sets forth plainly and concisely all material facts that the moving party contends are undisputed, and each of these material facts must be followed by a reference to the supporting evidence. (Code Civ. Proc., § 437c, subd. (b)(1), (f)(2).) A separate statement is required to afford due process to the opposing party and to permit the judge to expeditiously review the motion for summary judgment or summary adjudication to determine quickly and efficiently whether material facts are disputed. (*Parkview Villas Ass'n, Inc. v State Farm Fire & Cas. Co.* (2005) 133 Cal.App.4th 1197, 1210; *United Community Church v Garcin* (1991) 231 Cal.App.3d 327, 335.) As a result, the separate statement should include only *material* facts—ones that could make a difference to the disposition of the motion. (Cal. Rules of Court, rule 3.1350(f)(3); see also rule 3.1350(a)(2) [defining “material facts”].)

The moving party must go through its own case and the opposing party's case on an issue-by-issue basis. The moving party must identify for the court the matters it contends are “undisputed,” and cite the specific evidence (pleadings admissions, or discovery, or declarations) showing there is no controversy as to such matters and that the moving party is entitled to judgment as a matter of law. “This is the Golden Rule of Summary Adjudication: If it is not set forth in the separate statement, *it does not exist.*” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337 [superseded by statute on other grounds]; *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1282; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 173 [failure of defendant's separate statement to address material allegation in complaint was “fatal flaw”].)

Here, defendants cite to the same 79 material facts for each issue to be adjudicated. For material fact numbers 1-20, 22-27, 29-79, these all merely describe what plaintiff has alleged, largely beginning with “According to Plaintiff...” Thus, the only

material facts which are not a summary of plaintiff's allegations are material fact numbers 21 and 28. Material fact number 21 states, "Defendants Stoll and Northwest did not breach any fiduciary duty recognized under law as being owed to Plaintiff." To support this assertion, defendants cite to the Second Amended Complaint paragraph 84. Material fact number 28 states, "Plaintiff's breach of oral contract claim accrued as of May 31, 2020." To support this assertion, defendants cite to the Second Amended Complaint paragraph 24.

Material fact numbers 1-28, 42-76 cite only to portions of the Second Amended Complaint as evidence to support these facts. Material fact numbers 39-40 and 77-79 cite to either page 25 or 75 of Plaintiff's Responses to Defendant Northwest Baptist Church's Form Interrogatories.

Material Fact Number 21

Material fact number 21 presents a legal conclusion that defendants did not breach any fiduciary duty to plaintiff. A *fiduciary* relationship between a pastor and a congregant may exist where claims involve marital, family, or financial counseling. (*Richelle L. v. Roman Catholic Archbishop* (2003) 106 Cal.App.4th 257, 270-280.) Defendants argue that no such relationship exists here. Defendants cite to paragraph 84 of the Second Amended Complaint to support this conclusion. This paragraph asserts defendants failure to investigate plaintiff's claims in January of 2021 and their use of her name as a donation category on the church's website. (SAC, ¶ 84.) It does not support a conclusion that defendants owed no fiduciary duty here. Furthermore, defendants have not provided sufficient support for such an assertion where plaintiff's allegations center on several meetings with defendants regarding a financial issue in which she claims defendants persuaded her to refrain from litigation while defendants attempted to mediate and/or resolve the financial issue. Defendants have not provided sufficient support to claim that these activities do not constitute financial counseling.

As already noted, each request for adjudication relies on the same 79 material facts in the separate statement. Material fact number 21 lacks support. As material fact number 21 is identified in defendants' separate statement as material to each issue to be adjudicated, none of the issues defendants' identified may be adjudicated.

Material Fact Number 28

Material fact number 28 asserts when the breach of oral contract accrued. Defendants argue that plaintiff's first cause of action for breach of oral contract fails because it is time barred by the statute of limitations. Actions based on an oral contract must be brought within two years of breach of the oral contract. (Code Civ. Proc., § 339 (1); *Spears v. Spears* (2023) 97 Cal.App.5th 1294, 1304.) Breach of a contract accrues upon the alleged breach. (*Spears v. Spears, supra*, 97 Cal.App.5th at p. 1304.)

Defendants claim that the alleged breach accrued on May 31, 2020. (Material Fact No. 28.) Defendants cite only to paragraph 24 of the Second Amended Complaint as evidence to support this finding. Such a reading requires ignoring paragraph 57 of the same Second Amended Complaint, which states, "Plaintiff did not discover Defendants'

breaches until after January 31, 2021.” Notably, defendants have relied almost exclusively on the Second Amended Complaint as their evidence.

Further, defendants have focused on payment of monies to plaintiff as the sole source of the breach. This fails to read the alleged oral contract in whole. Plaintiff has alleged that defendants agreed to three things: (1) ensuring she would receive full compensation for a March 2, 2018 claim, (2) that defendant church's lawyers would help plaintiff if action was needed, and (3) that defendant Stoll would be a personal witness for plaintiff, if necessary. (SAC, ¶ 51.) In exchange, plaintiff would (1) write a claim for the amount she needed to restore her retirement, (2) refrain from taking independent action to recover what was owed her from teacher retirement or her house sale, (3) stop attending the church's mentoring program sessions, (4) refrain from taking action to recover her restricted donations and other monies, and (5) confidentially meet with a named individual to help her. (SAC, ¶ 52.) Plaintiff has alleged her performance. (SAC, ¶ 53.) Plaintiff has alleged defendants' breaches, including failure to assist her with any litigation. (SAC, ¶ 54.) Defendants have not provided any argument, evidence, or material facts addressing the breaches alleged by plaintiff relating to the church's lawyers assisting her or defendant Stoll acting as a witness for plaintiff.

A defendant who seeks a summary judgment must define *all* of the theories of liability alleged in the complaint and challenge each factually; if the defendant fails to do so, he or she does not carry the initial burden of showing the nonexistence of a triable issue of material fact. (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1165; *Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 714.) Defendant did not address each legal theory of liability in this motion. If the moving party fails to meet its burden of production, the opposing party has no evidentiary burden to even oppose the motion. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

As already noted, each request for adjudication relies on the same 79 material facts in the separate statement. Material fact number 28 lacks support. As material fact number 28 is identified as material to each issue to be adjudicated, none of the issues defendants' identified may be adjudicated.

Defendants' motion for summary judgment, or alternatively, adjudication, is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/19/26
(Judge's initials) (Date)